

K.S. Puttaswamy Vs. Union of India

K.Parameswari

II B.Com(Honours)

Face Pep Campus

Kamaraj College

Introduction

The Justice K.S. Puttaswamy case is one of the most important judgments in the history of Indian constitutional law. The main question before the Supreme Court was whether the Right to Privacy is a Fundamental Right under the Constitution of India.

The case arose during discussions about the Aadhaar scheme, which involved the collection of personal and biometric information of citizens. The Supreme Court finally held that privacy is a fundamental right and is protected mainly under Article 21, which guarantees the right to life and personal liberty. The Court also explained that privacy is connected with a person's dignity, freedom, choices and control over personal information.

Details of the Case

- **Title of the Case:** Justice K.S. Puttaswamy (Retd.) vs Union of India & Others
- **Citation:** Writ Petition (Civil) No. 494 of 2012
- **Date of Judgment:** 24 August 2017
- **Court:** Supreme Court of India
- **Petitioner:** Justice K.S. Puttaswamy, a retired Judge of the Karnataka High Court
- **Respondent:** Union of India
- **Type of Case:** Constitutional Writ Petition relating to the Fundamental Right to Privacy
- **Bench:** Nine-Judge Constitutional Bench – Justice J.S. Khehar (Chief Justice of India), Justice Jasti Chelameswar, Justice S.A. Bobde, Justice R.K. Agrawal, Justice Rohinton F. Nariman, Justice A.M. Sapre, Justice D.Y. Chandrachud, Justice Sanjay Kishan Kaul and Justice S. Abdul Nazeer.

Facts of the Case

Justice K.S. Puttaswamy filed a petition challenging certain aspects of the Aadhaar scheme. Under the Aadhaar system, the government collected personal information, demographic details and biometric information such as fingerprints and iris scans from individuals.

The Aadhaar scheme was introduced to provide a unique identity number and help the government deliver subsidies and welfare benefits to the correct persons. However, concerns

were raised about whether collecting and storing such a large amount of personal information could affect the privacy of citizens.

The government argued that earlier Supreme Court decisions, especially *M.P. Sharma v. Satish Chandra* and *Kharak Singh v. State of Uttar Pradesh*, did not recognise privacy as a fundamental right.

However, several later Supreme Court decisions had recognised privacy as an important constitutional right. Since there was a conflict between the earlier and later judgments, the matter was referred to a nine-judge bench.

The main purpose of this case was therefore to clearly decide whether the Right to Privacy is protected as a Fundamental Right under the Indian Constitution.

Legal Issues

1. Whether the Right to Privacy is a Fundamental Right under the Indian Constitution.
2. Whether Article 21, which protects life and personal liberty, also protects the right to privacy.
3. Whether the earlier judgments in *M.P. Sharma* and *Kharak Singh*, which did not recognise privacy as a fundamental right, were correct.
4. Whether privacy includes the protection of a person's personal information, choices, decisions and identity.
5. Whether the government can interfere with a person's privacy, and if yes, under what conditions.

Judgment

On 24 August 2017, a nine-judge bench of the Supreme Court unanimously held that the Right to Privacy is a Fundamental Right under the Indian Constitution. The Court stated that privacy is an important part of the Right to Life and Personal Liberty under Article 21 and is also connected with other fundamental rights.

The Court explained that privacy is not limited only to protecting a person's home or private space. It also includes the freedom to make personal choices, maintain dignity, protect personal

relationships and control personal information. The Court therefore recognised the importance of protecting the personal data and identity of individuals.

The Supreme Court also overruled the earlier decisions in *M.P. Sharma* and *Kharak Singh* to the extent that they denied the Right to Privacy as a fundamental right. However, the Court clarified that the Right to Privacy is not absolute. The government can interfere with a person's privacy only when there is a valid law, a legitimate purpose and the action is necessary and proportionate.

Legal Principle

The main legal principle established in this case is that the Right to Privacy is a Fundamental Right protected under Article 21 and other Fundamental Rights under Part III of the Indian Constitution. The Court stated that privacy is important for protecting the dignity, freedom and personal choices of every individual. It also includes the right to protect personal information from unnecessary interference. However, the Right to Privacy is not absolute. The government can interfere with a person's privacy only when there is a valid law, a legitimate purpose, and the action is necessary and proportionate. There should also be proper safeguards to prevent misuse of power. Therefore, a person's privacy cannot be violated without proper legal justification.

Business Relevance

This judgment is highly important for businesses because modern companies collect a large amount of customer and employee data. Banks, e-commerce companies, social media platforms, payment applications and other digital businesses collect information such as names, phone numbers, addresses, financial details and online activity.

After this judgment, businesses need to understand the importance of data privacy and data protection. Companies should collect personal information only when it is necessary and should protect it from misuse, theft or unauthorised sharing.

Businesses must also be more careful while using customer information for advertising, marketing or other commercial purposes. Customers should know how their data is collected and used.

The judgment therefore increased the importance of data security, customer consent, confidentiality and responsible use of personal information. It also encouraged the development of stronger data protection laws in India.

Conclusion

The Justice K.S. Puttaswamy vs Union of India case is an important judgment because it recognised the Right to Privacy as a Fundamental Right. The Supreme Court stated that privacy is closely connected with a person's dignity, freedom and personal liberty.

The Court also changed the earlier decisions that did not recognise privacy as a fundamental right. However, the Court explained that privacy is not an absolute right and can be restricted only according to law and for a valid reason.

This case is important for citizens, the government and businesses because personal information is widely collected and used in the digital world. Overall, this judgment strengthened the protection of individual privacy and personal data in India.